

to stop it, the Court might well hold the trustee not to be liable for doing the act (*c*).

6. **Validity of an act without suit.** — It is a rule of equity, that what is compellable by suit, or would have been ordered by the Court, is equally valid if done by the trustee *without suit*, *i.e.*, without the sanction of the Court (*d*). The difficulty with which the trustee has to struggle is the danger of assuming that the Court, on application to it, would view the matter in the same light with which he regards it himself (*e*).

7. **Matter of form may be dispensed with.** — Trustees, to avoid circuity, may dispense with *forms*, the observance of which would only lead to expense. If, for instance, the transfer of a sum of stock be secured to trustees of a settlement, and they have power by the settlement to sell out the fund and invest on mortgage, they need not insist on a transfer of the stock *in specie* for the purpose of immediately selling out and *investing the proceeds on [*574] mortgage, but if they have the mortgage ready may take the value of the stock and hand it over to the mortgagor (*a*). So trustees having a power to lay out a certain sum in the purchase of an annuity for A. B., may pay the sum to A. B. direct, without going through the form of purchasing the annuity (*b*).

8. **Repairs.** — Where the legal estate is vested in trustees in trust for one person *for life*, with remainders over to others, it would be natural to suppose that the rights in equity as between the tenant for life and the remaindermen would be the same as those at law between a legal tenant for life and

(*c*) *Life Association of Scotland v. Siddal*, 3 De G. F. & J. 74, *per* L. J. Turner.

(*d*) *Lee v. Brown*, 4 Ves. 369, *per* Cur.; *Earl of Bath v. Bradford*, 2 Ves. 590, *per* Lord Hardwicke; *Cook v. Parsons*, Pr. Ch. 185, *per* Cur.; *Inwood v. Twyne*, 2 Eden, 153, *per* Lord Northington; *Hutcheson v. Hammond*, 3 B. C. C. 145, *per* Buller, J.; *Terry v. Terry*, Gilb. 11, *per* Lord Cowper; *Shaw v. Borrer*, 1 Keen, 576, *per* Lord Langdale; *Seagram v.*

Knight, 2 L. R. Ch. App. 630; *Gilliland v. Crawford*, 4 I. R. Eq. 42, *per* Cur. [*Brown v. Smith*, 10 Ch. D. 377.] The same rule holds also at law, see Co. Lit. 171, a.

(*e*) See *Forshaw v. Higginson*, 3 Jur. N. S. 476.

(*a*) See *Pell v. De Winton*, 2 De G. & J. 20; *George v. George*, 35 Beav. 382.

(*b*) *Messeena v. Carr*, 9 L. E. Eq. 260.